

26PSCV00600 26PSCV00600

County: los-angeles

Division: Civil Law and Motion

Department: 6

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Case Number: 26PSCV00600 Hearing Date: July 9, 2026 Dept: 6

Plaintiff Fifth Third Bank's Request for Entry of Default Judgment

Defendant: Minjae Kim

TENTATIVE RULING

Plaintiff's request for entry of default judgment is granted in the amount of \$113,225.45. The Court directs Plaintiff to submit a revised proposed judgment for the Court's review and signature. If Plaintiff submits on this tentative ruling, Plaintiff can submit the revised proposed judgment in advance of the hearing date.

BACKGROUND

This is a lending dispute. On February 19, 2026, plaintiff Fifth Third Bank, N.A., successor by merger to Comerica Bank (Plaintiff) filed this action against defendant Minjae Kim (Defendant) and Does 1 to 100, alleging causes of action for breach of guaranty, money lent, and account stated.

On April 21, 2026, the court clerk entered default against Defendant.

On May 8, 2026, Plaintiff requested entry of default judgment against Defendant.

LEGAL STANDARD

Code of Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff seeks default judgment against Defendant in the total amount of \$115,842.62, including \$100,000.00 in damages, \$9,812.50 in interest, \$5,270.00 in attorney fees, \$522.95 in costs, and \$237.17 in late charges. The Court finds Plaintiff has provided sufficient evidence to support the damages claimed, but the attorney fee request is excessive. The available attorney fee under Local Rule 3.214 is \$2,890.00, i.e., \$1,890.00 plus 2% of \$50,000.00 (or \$1,000.00). (Local Rule 3.214.) The Court also finds no documentary evidence to showing how the \$237.17 in late charges was calculated and will therefore deduct those from the judgment. (See Alfaro Decl., ¶¶ 7, 12, 17; Code Civ. Proc., § 585, subd. (b) ["The court shall hear the evidence offered by the plaintiff, and shall render judgment in the plaintiff's favor for that relief, not exceeding the amount stated in the complaint... as appears by the evidence to be just"]; Cal. Rules of Court, rule 3.1800, subds. (a)(2), (a)(8).) The Court will therefore grant Plaintiff's default judgment request in the amount of \$113,225.45.

CONCLUSION

Based on the foregoing, Plaintiff's request for entry of default judgment is granted in the amount of \$113,225.45. The Court directs Plaintiff to submit a revised proposed judgment for the Court's review and signature. If Plaintiff submits on this tentative ruling, Plaintiff can submit the revised proposed judgment in advance of the hearing date.